

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF UTAH

Matthew Reardon
Plaintiff

v

Cause No: 1:25-cv-00041-JCB

City of Layton, Utah, et al,
Defendants

PLAINTIFF'S MOTION TO LIFT STAY DUE TO CONTINUING HARM

TO THE HONORABLE COURT:

Plaintiff Matthew Oliver Reardon, appearing pro se, respectfully moves this Honorable Court to lift the stay entered on March 31, 2025, which presently prohibits the filing of any new pleadings or supplemental materials pending review of Plaintiff's in forma pauperis eligibility. As grounds for this motion, Plaintiff states that he is suffering ongoing and compounding harm as a result of retaliatory actions by federal agents and state actors, and that continued delay places his safety, liberty, and rights under imminent threat.

On March 31, 2025—the same day the Court entered its Order—Plaintiff visited the FBI Salt Lake City Field Office to hand-deliver a sworn affidavit pertaining to the criminal misconduct of Oxford, Mississippi Police Captain Hildon Sessums. FBI agents refused to accept the affidavit, demanded a background check without lawful basis, threatened

Plaintiff with arrest, and ordered him off federal property while recording his license plate. These actions occurred while Plaintiff was peacefully standing in the visitor parking lot and exercising his First Amendment rights to petition the government and expose misconduct.

The events of March 31 are now documented in a second sworn declaration, which Plaintiff intends to file with this court as Exhibit D, however Plaintiff has been unable to file this due to the stay. The inability to submit material evidence of ongoing retaliation not only jeopardizes Plaintiff's ability to seek justice, but risks creating a procedural record that is incomplete and outdated.

Additionally, Plaintiff is a crime victim as defined under 18 U.S.C. § 3771(e), and invokes his rights under the Crime Victims' Rights Act, including the right to be reasonably protected from the accused and to proceedings free from unreasonable delay. Plaintiff is actively being targeted and silenced for exposing constitutional violations and systemic abuse by both local and federal officials. Judicial inaction at this juncture emboldens further retaliation and risks irreparable harm.

Plaintiff therefore respectfully requests that the Court lift or modify its March 31, 2025 stay order to allow immediate filing of:

- (1) Exhibit D – Plaintiff's Second Sworn Declaration;
- (2) Plaintiff's Invocation of Victim Rights Under the Justice for All Act;
- (3) Plaintiff's First Amended Complaint;

Alternatively, Plaintiff asks that the Court authorize chambers submission or under-seal lodging of the above documents pending formal acceptance.

WHEREFORE, Plaintiff prays that the stay be lifted or modified to permit prompt filing of critical materials, and for such other relief as the Court deems just and proper.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'MOR', is written over a horizontal line.

Matthew Oliver Reardon

Plaintiff, Pro Se

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Dated: April 08, 2025